

AGENCY AGREEMENT (RESIDENTIAL)

USER GUIDE

1. This agreement has been designed to comply with the *Property and Stock Agents Act 2002* (NSW) (**Act**) and the *Property and Stock Agents Regulation 2022* (NSW) (**Regulation**).
2. The Agent must fully understand the terms of the agency agreement. Failure to comply with the law and follow correct procedure may prevent the Agent from recovering their commission, fees and expenses and/or subject the Agent to penalties for breach of the Act and Regulation. The Agent should be able to explain the agency agreement to the Principal.
3. All parts of this agreement must be completed. An omission may bring about a defective agency agreement, enabling a Principal to avoid their financial responsibilities to the Agent.
4. A licensee may delegate their authority to certain persons to both inspect the Premises and sign the agency agreement. The licensee must, however, supervise that person in accordance with the Regulation and any current supervision guidelines issued by the NSW Commissioner for Fair Trading (or, if applicable, the Secretary of the Department of Customer Service). An assistant agent may sign the inspection report, however, an assistant agent **MUST NOT** sign the agency agreement (at the end of this agreement).
5. The agency agreement must be signed by both the Agent and Principal, and the copy marked "Principal's Copy" must be served on the Principal within 48 hours in the manner provided by the Act and Regulation. The Agent should print the signed agreement (even if signed electronically) and serve it in accordance with the Act and Regulation (including, without limit, s55(1)(c) of the Act). Failure to do so may result in loss of commission.
6. If there are more than two principals that are individuals or if there is more than one principal that is a corporation, then an Additional Principal Annexure needs to be included in this agreement and completed. Additionally, if the Agent consists of more than one person or legal entity, then a Joint Agent Annexure needs to be included in this agreement and completed. If you are preparing this agreement using REI Forms Live, this must be done prior to finalising the agreement by selecting the relevant annexures in the sidebar.
7. The licensee's licence number must appear on the agency agreement. If the Agent trades as a corporation the licence number is the corporation's licence number, if as a sole trader the Agent's licence number, if as a partnership it is one of the partner's licence numbers.
8. The agency agreement must contain written confirmation of the extent of the Agent's authority in respect of the management of the leased Premises.
9. This is an exclusive management agency agreement. The Agent should make enquiries of the Principal as to whether the Principal has signed any other agency agreement in respect of the management of the subject Premises. If this is the case, the Principal should check whether the first agency agreement is still current, which may mean that the Principal is liable for the payment of more than one commission.
There may be the possibility of more than one tenant being signed to a lease, that is, by yourself and another Agent. It is advised that you check with the Principal before signing up a tenant.
10. An inspection report of the Premises must be completed and given to the Principal as soon as practicable after entering into this agreement. The practical approach would be to complete the inspection report when completing the condition report for the Residential Tenancy Agreement. (Note: A pro forma inspection report is available on the inside cover).
11. GST
 - i GST is payable by the Agent to the ATO in respect of the payment for the performance of the Agent's services under this agency agreement. The agency agreement provides that the Agent is entitled to recover GST from the Principal.
 - ii In accordance with ACCC guidelines, all amounts referred to in this agreement, including fees, expenses and outgoings are expressed as inclusive of GST.
 - iii Where the leasing fee is calculated as an amount based on one week's rent, the agreement should be completed as follows:
 - one week's rent + 10% = 110% of one week's rent, or
 - a single GST inclusive fee.
 - iv Where the Agent incurs an expense in the course of providing property management services such as advertising and telephone charges, these expenses are considered a taxable supply, even if the expense is GST free in the Agent's hand. When recovering disbursements, agents should subtract the input tax credit received on the original expenses and then add on GST when charging the Principal. Example: postage expenses of \$9.90, Agent can claim an input tax credit of 90c. The Agent charges the Principal \$9.00 plus 90c GST being a total of \$9.90.
 - v Where expenses are paid by the Agent, as agent for the Principal, and the account is addressed directly to the Principal, the Agent should pass the account to the Principal without adding any further GST (e.g. owners corporation levy, accounts for repairs and maintenance).
 - vi The Agent's fee should be calculated on the GST inclusive value of the rent.
12. Ensure that all costs and expenses are included in the agency agreement.
13. The services, charges and expenses cannot be varied except as agreed by the Principal in writing.
14. Attach any special conditions where space is insufficient (e.g. where the Agent is to perform additional services or where they are to advertise), write "See Annexure Hereto" and then attach the annexure to each copy of the agreement. The annexure must also be signed by both parties.
15. If the Agent is instructed by the Principal to pay insurance renewals that instruction must be confirmed by the Principal each and every time the insurance renewal falls due. It is recommended that instructions be in writing, at the minimum the Agent should make a file note.
16. The Agent must not provide financial, investment, taxation or other advice. Any person seeking the Agent's opinion should be advised to consult with their own independent financial, investment and/or taxation advisor or other appropriately qualified expert.
17. A landlord or landlord's agent must disclose any proposal to sell the premises during a tenancy. Failure to disclose may entitle the tenant to terminate the tenancy without compensation.
18. Agents have an obligation to advise a prospective tenant of all material facts in respect of the Premises. The material fact clause will assist in that process, but will not of itself discharge the Agent's obligations. You should raise this issue with the Principal and also undertake reasonable research to become aware of the material facts pertaining to the Premises.
19. The Agent must disclose, in the agency agreement:
 - i the source and the reasonably estimated amount of all rebates, discounts or commissions that the Agent will or may receive in respect of expenses claimed for services provided by the Agent in relation to the real estate transaction or else the Agent will not be entitled to those expenses; and
 - ii if the Agent refers a person to a non-independent service provider, the nature of all relationships the Agent has with that service provider and the nature and value of all rebates, discounts, commissions or benefits the Agent may receive, or expects to receive, by referring the client or customer to that service provider.

If the Agent receives or expects any further rebates, discounts or commissions after this agency agreement has been executed and such rebates, discounts or commissions are not disclosed in this agency agreement, it is recommended that the Agent either enter into a new agency agreement with the Principal or amend this agency agreement (in writing signed by the Agent and the Principal) to reflect such rebates, discounts, commissions or benefits. This is to ensure that the Agent complies with section 57 of the Act and is not disentitled to the expenses claimed for the services provided.
20. The Agent or Principal must not enter into a residential tenancy agreement for the Premises during a tenancy exclusion period, as provided by the *Residential Tenancies Act 2010* (NSW).
21. The Agent must not recommend a person to engage services of a solicitor or licensed conveyancer, or a firm of solicitors or licensed conveyancers, if the Agent knows that the solicitor or licensed conveyancer, or the firm, acts or will be acting for the other party. The Agent is not prevented from recommending a person to engage services of a solicitor or licensed conveyancer, or a firm of solicitors or licensed conveyancers, that acts or will be acting for the other party, if there is no other solicitor, licensed conveyancer or firm available. If this applies, the Agent must advise the person that the solicitor, licensed conveyancer or firm is or will be acting for the other party.
22. It should be noted that there are disclosure requirements under the Act, Regulation and privacy legislation or other law which are required to be given separately from the agency agreements under certain circumstances.
23. The electronic signing and service provisions in this agreement apply only if this agreement is signed or served electronically (including, without limitation, via a third-party platform).
24. Ensure that a person signing on behalf of a Principal corporation identifies their status on the agency agreement, e.g. Director, Secretary, Attorney and that an ASIC company search is conducted to ensure proper authority of the signatories to the agreement. If a party is a corporation and signs this agreement electronically, it must ensure it signs in accordance with section 127 of the *Corporations Act 2001* (Cth) as the other party may not be entitled to make the assumptions set out in section 129 of the *Corporations Act 2001* (Cth).

INSPECTION REPORT

PARTIES

Principal

ABN / ACN		GST Registered ☐ Yes ☐ No	
Address			
		Postcode	
Phone: Work	Home	Mobile	
Email* (see note)			

ABN / ACN		GST Registered ☐ Yes ☐ No	
Address			
		Postcode	
Phone: Work	Home	Mobile	
Email* (see note)			

*** Note:** By including your email address, you consent to service of any documents, including this agreement and any documents required to be served under or because of this agreement, by way of email.

Note: If there are more than two principals that are individuals or if there is more than one principal that is a corporation, then an Additional Principal Annexure needs to be included in this agreement and completed.

Agent

Licensee's Licence No.** (see note)			
ABN / ACN		GST Registered ☐ Yes ☐ No	
Trading as			
Business address			
		Postcode	
Phone: Work	Mobile		
Email*** (see note)			

**** Note:** If the Agent trades as a corporation the licensee's licence number is the corporation's licence number.

***** Note:** By including your email address, you consent to service of any documents, including this agreement and any documents required to be served under or because of this agreement, by way of email.

Note: If the Agent consists of more than one person or legal entity, then a Joint Agent Annexure needs to be included in this agreement and completed.

Address of Premises

Suburb		State	
		Postcode	

Description of Premises (e.g. house, unit, number of bedrooms, garage, etc.)

Description of the exterior condition of the Premises

Description of the interior condition of the Premises

Fixtures and Fittings on the Premises (e.g. smoke alarms) and a description of their condition

Improvements made to the Premises and a description of their condition

INSPECTION REPORT

Anything provided with the Premises and a description of their condition

Work to be done by the Principal	Estimated date of completion
	/ /
	/ /
	/ /

I agree to be legally bound by the terms of this form even if I sign this form electronically.

Signature of Agent / Authorised Representative	Name of Signatory	Date of preparation of report

Note 1: This part of the agreement may be signed by an assistant agent.

Note 2: If the Agent consists of more than one person or legal entity, then a Joint Agent Annexure needs to be included in this agreement and completed.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

The Property and Stock Agents Act 2002 (NSW) (Act) and Regulation require all agents' instructions to be in the form of a written agreement.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT

PARTIES

Principal *

ABN / ACN		GST Registered ☐ Yes ☐ No
Address*		
Postcode		
Phone: Work	Home	Mobile
Email** (see note)		

ABN / ACN		GST Registered ☐ Yes ☐ No
Address*		
Postcode		
Phone: Work	Home	Mobile
Email** (see note)		

*** Note:** If the Principal(s) is a corporation, insert the name and business address of the corporation. Otherwise, insert the residential address of the Principal(s).

**** Note:** By including your email address, you consent to service of any documents, including this agreement and any documents required to be served under or because of this agreement, by way of email.

Note: If there are more than two principals that are individuals or if there is more than one principal that is a corporation, then an Additional Principal Annexure needs to be included in this agreement and completed.

Principal(s) Contact Details for Residential Tenancy Agreements

For the purpose of any residential tenancy agreement entered into with respect to the Premises, [I/we] instruct the Agent to include in that agreement the following details as [my/our] name, address and contact details:

☐ Tick box if Principal(s) details are SAME AS ABOVE

Name(s) (including corporation name if a corporation):

Telephone Number(s) or Other Contact Details (including, if applicable, email address):

Phone: Work Home Mobile

Email

State/Territory and country in which [I/we] ordinarily reside:

Business address if Principal(s) is a corporation:

Address

Postcode

Agent

Licensee's Licence No.*** (see note)

ABN / ACN GST Registered ☐ Yes ☐ No

Trading as

Business address

Postcode

Phone: Work Mobile

Email**** (see note)

***** Note:** If the Agent trades as a corporation the licensee's licence number is the corporation's licence number.

****** Note:** By including your email address, you consent to service of any documents, including this agreement and any documents required to be served under or because of this agreement, by way of email.

Note: If the Agent consists of more than one person or legal entity, then a Joint Agent Annexure needs to be included in this agreement and completed.

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PREMISES

Address of Premises to be leased

Suburb

State

Postcode

Being: ☐ Furnished ☐ Unfurnished Garage/Car Space included ☐ Yes ☐ No

AGREEMENT

Agent's Appointment

- The Principal hereby appoints the Agent exclusively to lease and to manage the Premises in accordance with this agreement.
- It is agreed that the Agent may from time to time delegate to the Agent's employees all or any of the authority vested in the Agent by this agreement. In accordance with, and subject to, the terms of the Act, the Agent remains responsible for the acts and omissions of the Agent's employees.
- This agreement shall commence on the / / and may be terminated by either party giving not less than written notice of termination but without prejudice to either party's rights accrued or obligations incurred prior to the effective termination.

Leasing

- The Agent is authorised to lease all or any part of the Premises on the following conditions, or as otherwise instructed:
 - Term of the tenancy agreement
 - Rent \$ per payable in advance or such other rent as the Principal may agree to accept.
 - Rental bond \$ or equivalent to weeks rent in respect of each tenancy.

Special Instructions

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Agent's Authority

- At the end of each tenancy, the Agent is authorised to:
 - Re-lease the Premises at market rent for a term not exceeding ☐ Yes ☐ No
 - Refer to the Principal for instructions concerning re-leasing and advertising /promotion ☐ Yes ☐ No
 - Review the rent when in the opinion of the Agent such a review is appropriate. ☐ Yes ☐ No

Agent's Remuneration

- The Agent shall be entitled to the following fees: (GST inclusive)
 - A leasing fee upon leasing of regardless of whether the Premises are let by the Agent; any other agent; or the Principal. The Agent's Leasing Fee is due and payable by the Principal when a tenant enters into possession of the Premises or signs a residential tenancy agreement or pays rent, whichever occurs first.
 - A tenancy agreement preparation fee of \$ is payable when a tenancy agreement is prepared by the Agent.
 - A management fee of % of all monies collected on behalf of the Principal
 - An administration fee of \$ per
 - Lease Renewal Fee of per lease renewal signing
 - Other

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

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EXCLUSIVE MANAGEMENT AGENCY AGREEMENT

Services, Charges and Expenses

8. If the Agent performs any of the services in Part A (below), the Agent is entitled to remuneration for the services as set out below and to reimbursement for expenses or charges incurred by the Agent in connection with the services as set out below. If the Agent incurs any of the expenses or charges in Part B (below), the Agent is entitled to reimbursement for those expenses or charges as set out below.

Part A – Services

	Amount (GST inclusive)	When due and payable by the Principal
Attendance at a tribunal / court	\$	
Preparation of a tribunal / court case	\$	
Arranging repairs and maintenance	\$	
Calculation and collection of water and sewerage usage charges	% of cost	
Arrangement of refurbishment or improvements	\$	
Arranging inspections to ensure compliance with laws relating to smoke alarms and/or heat alarms	\$	
Service of any notice	\$	
Processing insurance claims, including valuations for insurance purposes	\$ per hour	
Disaster / emergency management fee	% of cost	
Other	\$	

Part B – Reimbursement of miscellaneous expenses or charges

NCAT fees in connection with services involving NCAT proceedings		
Sheriff's fees in connection with services relating to the recovery of possession of the Premises		
Marketing and /or promotional expenses for each letting in connection with marketing and /or promotional services	\$	
Statement / administration fees	\$	
Office expenses in respect of each management being postage, phone calls and out of pocket expenses	\$	
Other	\$	
Other	\$	

Variation of Services, Charges and Expenses

9. The services to be provided by the Agent and any charges or expenses payable by the Principal to the Agent pursuant to this agreement cannot be varied except as agreed by the Principal in writing.

Promotional Activities

10. The Premises are to be advertised and /or otherwise promoted ☐ as per the attached schedule **OR** ☐ not advertised **OR** as follows:

The promotional fee for each leasing is

\$ and is due and payable

For Lease Sign: Permission is hereby granted for the Agent to erect "For Lease" signage ☐ Yes ☐ No

It is acknowledged that the Agent is not responsible for any liability, damages or injuries incurred as a result of the erection of the signage except to the extent that any unlawful or negligent act or omission of the Agent contributed to the liability, damage or injury.

Administration of Tenancy Agreement

11. In respect of each tenancy, the Agent is authorised and directed on behalf of the Principal to:

- | | | | |
|-----|---|------------------------------|-----------------------------|
| i | Arrange inspection and show prospective tenants | ☐ Yes | ☐ No |
| ii | Obtain references from prospective tenants | ☐ Yes | ☐ No |
| iii | a Select tenants; OR | ☐ Yes | ☐ No |
| | b Recommend tenants | ☐ Yes | ☐ No |

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

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EXCLUSIVE MANAGEMENT AGENCY AGREEMENT

- | | | | |
|------|---|------------------------------|-----------------------------|
| iv | Enter into and sign tenancy agreements in respect of all or any part of the Premises (subject to clause 4) | ☐ Yes | ☐ No |
| v | Collect rent and other amounts under tenancy agreements | ☐ Yes | ☐ No |
| vi | Issue receipts for monies received from tenants pursuant to tenancy agreements | ☐ Yes | ☐ No |
| vii | Receive and disburse rental bonds (including lodgement) in accordance with the provisions of the <i>Residential Tenancies Act 2010</i> (NSW) | ☐ Yes | ☐ No |
| viii | Make claims for the refund of bond monies, having regard to rent due and the condition of the Premises at the end of each tenancy | ☐ Yes | ☐ No |
| ix | Respond to any applications by tenants before the NSW Civil and Administrative Tribunal (NCAT) or the like and represent the Principal in any NCAT or court proceedings (whether commenced by a tenant or otherwise) | ☐ Yes | ☐ No |
| x | Exercise the Principal's right to enforce or terminate tenancy agreements, and sign and serve notices as necessary | ☐ Yes | ☐ No |
| xi | Forward to the Principal copies of any documents signed by the Agent on behalf of the Principal | ☐ Yes | ☐ No |
| xii | Undertake inspections at Agent's discretion. | ☐ Yes | ☐ No |
| xiii | If required, obtain copies of any by-law or management statement relating to a strata or community scheme, which is required to be provided to the tenant | ☐ Yes | ☐ No |

12. In respect of each tenancy, the Agent and each and every one of their partners, employees or other officers from time to time as the case may be is authorised and directed on behalf of the Principal to make application before the NCAT or the like and to do all things necessary to commence and (as far as practicable) complete proceedings for:

- | | | | |
|----|---|------------------------------|-----------------------------|
| i | The recovery of possession of the Premises from tenants | ☐ Yes | ☐ No |
| ii | The recovery of monies due | ☐ Yes | ☐ No |

S.5A Lease: Release from Rent Control

- 13.** The Premises have been released from rent control by 5A Lease registration or through having become vacant on or after 1 January 1986 ☐ Yes ☐ No

Inventories (Furnished Premises)

- 14.** Where the Premises are furnished an inventory shall be prepared by the: ☐ Principal **OR** ☐ Agent

Inspection

- 15.** Unless the Principal advises the Agent to the contrary, any prospective tenant is entitled to inspect the Premises in the following circumstances:

Repairs and Maintenance

- 16.** The Agent is authorised to engage appropriately qualified tradespersons to effect repairs and maintenance in accordance with the Principal's obligations to repair (if any) or as otherwise instructed, provided that expenditure in excess of

\$ for any one item shall not be incurred without the prior approval of the Principal except where in the opinion of the Agent (acting reasonably) that, because of an emergency, repairs are necessary for the protection of the Premises or the supply of essential services to tenants.

Disbursements from Principal's Monies

- 17.** The Agent is authorised and instructed to pay the following from monies received on behalf of the Principal:

- | | | | |
|------|--|------------------------------|-----------------------------|
| i | Accounts for repairs and maintenance in accordance with clause 16 | ☐ Yes | ☐ No |
| ii | Council rates (see attached Schedule) | ☐ Yes | ☐ No |
| iii | Water, sewerage and drainage rates (see attached Schedule) | ☐ Yes | ☐ No |
| iv | Insurance premiums (see attached Schedule) | ☐ Yes | ☐ No |
| v | Owners corporation levies (see attached Schedule) | ☐ Yes | ☐ No |
| vi | Maintenance expenses, including expenses of caretaking / cleaning / gardening | ☐ Yes | ☐ No |
| vii | Maintenance contracts for services installed (lifts, etc) | ☐ Yes | ☐ No |
| viii | Costs of and incidental to arranging inspections to ensure smoke alarm compliance, and the costs of repairing, replacing, upgrading or installing any smoke alarms | ☐ Yes | ☐ No |
| ix | NCAT fees | ☐ Yes | ☐ No |
| x | Writ of execution | ☐ Yes | ☐ No |
| xi | Sheriff's fees | ☐ Yes | ☐ No |
| xii | Any fee required to obtain a by-law or management statement | ☐ Yes | ☐ No |
| xiii | <input type="text"/> | ☐ Yes | ☐ No |
| xiv | <input type="text"/> | ☐ Yes | ☐ No |

See attached Schedule for particulars

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

The Property and Stock Agents Act 2002 (NSW) (Act) and Regulation require all agents' instructions to be in the form of a written agreement.

Statement of Account

18. The Agent shall render a statement monthly or as instructed, accounting for monies received and expenses incurred on behalf of the Principal and for fees and charges retained in respect of services performed for the Principal, and the balance less disbursements shall be remitted to the Principal as hereinafter specified (see attached Schedule). If at any time amounts payable exceed the balance of the account, the Principal agrees to pay the excess amount to the Agent upon demand.

Authority to Deduct

19. In the event of any monies being paid to the Agent on behalf of the Principal, the Agent is hereby authorised to deduct from such monies all of the above mentioned fees, expenses and charges, and seek reimbursement pursuant to the clause 'Financial Institution Taxes or Deductions' below, before accounting to the Principal.

Financial Institution Taxes or Deductions

20. The Agent shall be entitled to be reimbursed for any taxes or deductions debited by banks or other financial institutions against the Agent's account that are attributable to the affairs of the Principal.

GST

21. Any amounts referred to in this agreement which are payable by the Principal to the Agent in respect of services provided by the Agent under this agreement, including reimbursement of expenses, are expressed inclusive of the Goods and Services Tax ("GST"), at the rate of 10% (the current rate). If the current rate is increased or decreased, the parties agree that any amounts referred to in this agreement will be varied accordingly.

Agent's Indemnity, Liability and Release

22. The Principal will hold harmless and keep indemnified the Agent against, and release the Agent from, all actions, suits, proceedings, claims, demands, costs and expenses ("Claims") whatsoever which may be taken or made against the Agent in the course of or arising out of the proper performance or exercise of any of the powers, duties or authorities of the Agent under this agreement provided that this hold harmless, indemnity and release does not apply to the extent that any default, or unlawful or negligent act or omission, of the Agent contributed to the relevant Claim.

Financial, Investment, Taxation and Other Advice

23. **WARNING:** The Principal acknowledges that any financial, investment, taxation or other advice provided by the Agent to the Principal is of a general nature only whose preparation does not take into account the individual circumstances, objectives, financial situation or needs of the Principal. The Principal is advised to consult with their own independent financial, investment and/or taxation advisor or other appropriately qualified expert.

Disclosure of information to tenants

24. i The *Residential Tenancies Act 2010* (NSW) requires that certain information be disclosed to the tenant before the tenant enters into a residential tenancy agreement. Please answer the following:

- | | | |
|---|------------------------------|-----------------------------|
| a. Has the landlord prepared a contract for sale of the residential premises? | ☐ Yes | ☐ No |
| b. Is there any proposal to sell the residential premises? | ☐ Yes | ☐ No |
| c. Has a mortgagee commenced proceedings in a court to enforce a mortgage over the premises? | ☐ Yes | ☐ No |
| - If yes, is a mortgagee taking action for possession of the premises? | ☐ Yes | ☐ No |
| d. If the Premises comprise of or include a lot in a strata scheme (within the meaning of the <i>Strata Schemes Management Act 2015</i> (NSW)), is a strata renewal committee currently established in relation to the strata scheme? | ☐ Yes | ☐ No |

Note: The landlord or landlord's agent must also provide a copy of the by-laws for the strata scheme before the tenant enters into a residential tenancy agreement.

- ii If the Premises comprise of a lot in a strata scheme, the Principal must provide a copy of the current by-laws for the strata scheme to the Agent and provide any amendments to those by-laws to the Agent immediately upon receiving notice of such amendments.

Material Fact

25. i A landlord or landlord's agent must not induce a tenant to enter into a residential tenancy agreement by any statement, representation or promise that the landlord or agent knows to be false, misleading or deceptive or by knowingly concealing a material fact of a kind prescribed by the *Residential Tenancies Regulation 2019* (NSW). Please answer the following:

- | | | |
|---|------------------------------|-----------------------------|
| a. Have the Premises been subject to flooding from a natural weather event or bush fire within the last 5 years? | ☐ Yes | ☐ No |
| ☐ Details <input type="text"/> | | |
| b. Are the Premises subject to significant health or safety risks that are not apparent to a reasonable person on inspection of the Premises? | ☐ Yes | ☐ No |
| ☐ Details <input type="text"/> | | |
| c. Are the Premises listed on the LFAI (Loose-fill Asbestos Insulation) Register? | ☐ Yes | ☐ No |
| ☐ Details <input type="text"/> | | |
| d. Have the Premises been the scene of a serious violent crime within the last 5 years? | ☐ Yes | ☐ No |
| ☐ Details <input type="text"/> | | |
| e. Have the Premises been used for the purposes of the manufacture or cultivation of any prohibited drug or prohibited plant within the meaning of the <i>Drug Misuse and Trafficking Act 1985</i> within the last 2 years? | ☐ Yes | ☐ No |
| ☐ Details <input type="text"/> | | |
| f. Will council waste services be provided to the tenant on a different basis than is generally applicable to residential premises within the area of the council? | ☐ Yes | ☐ No |
| ☐ Details <input type="text"/> | | |

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EXCLUSIVE MANAGEMENT AGENCY AGREEMENT

- g. Because of the zoning of the land or other laws applying to development on the land, will the tenant not be able to obtain a residential parking permit in an area where only paid parking is provided? ☐ Yes ☐ No
☐ Details
- h. Is there a driveway or walkway on the Premises which other persons are legally entitled to share with the tenant? ☐ Yes ☐ No
☐ Details
- i. If the Premises comprise or include a lot in a strata scheme, are there any scheduled rectification work or major repairs (including replacement of roofing, guttering or fences) to be carried out to common property during the fixed term of this agreement? ☐ Yes ☐ No
☐ Details
- j. Are the Premises part of a building in relation to which a notice of intention to issue a fire safety order, or a fire safety order, has been issued requiring rectification of the building regarding external combustible cladding? ☐ Yes ☐ No
☐ Details
- k. Are the Premises part of a building in relation to which a notice of intention to issue a building product rectification order, or a building product rectification order, has been issued requiring rectification of the building regarding external combustible cladding? ☐ Yes ☐ No
☐ Details
- l. Are the Premises part of a building in relation to which a development application or complying development certificate application has been lodged for rectification of the building regarding external combustible cladding? ☐ Yes ☐ No
☐ Details
- ii The Principal warrants that the Principal has supplied the Agent in writing with all the relevant details and information pertaining to all the material facts in respect of the Premises and will keep the Agent updated in writing of any changes to material facts.
- iii The Principal acknowledges that the *Residential Tenancies Act 2010* (NSW) requires the Agent to disclose all material facts to prospective tenants.
- iv The Principal directs the Agent to disclose all of the material facts provided in writing by the Principal to the Agent to all prospective tenants of the Premises.
- v In this clause:
- "building product rectification order" has the same meaning as in the *Building Products (Safety) Act 2017* (NSW);
 - "external combustible cladding" has the same meaning as in the *Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021* (NSW);
 - "fire safety order" has the same meaning as in the *Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021* (NSW);
 - "LFAI (Loose-fill Asbestos Insulation) Register" has the meaning given to the term "LFAI Register" in clause 3(1) of the *Residential Tenancies Regulation 2019* (NSW);
 - "material fact" has the same meaning as it has for the purposes of section 26 of the *Residential Tenancies Act 2010* (NSW); and
 - "serious violent crime" includes murder, manslaughter, sexual assault or aggravated assault.

Privacy

26. i The *Privacy Act 1988* (Cth) (the **Privacy Act**) allows personal information to be collected, held, used and disclosed for the purposes for which it was collected as notified to users, and otherwise in accordance with the Privacy Act.
- ii This clause outlines how the Agent collects, holds, uses and discloses the Principal's personal information (as that term is defined in the Privacy Act). This clause only applies to the extent the Agent collects, holds, uses and discloses personal information.
- iii The Agent may collect, hold, use and disclose personal information the Principal provides the Agent in connection with this agreement or collected from other sources for the following purposes: (a) identifying and verifying the Principal and the Premises; (b) advertising and promoting the Premises for lease; (c) processing and assessing any application received in relation to the lease of the Premises; (d) negotiating and preparing any lease for the Premises; (e) liaising and exchanging information with the Principal and the Agent's or Principal's legal and other advisors in relation to or in connection with any lease of the Premises; (f) managing this agreement and any lease of Premises including the collection of rent on behalf of the Principal and the preparation of required statements of account; (g) complying with any applicable law; (h) confirming whether the Principal is registered for GST purposes; (i) operating controlled money accounts; (j) complying with any dispute resolution process; (k) serving and signing (or arranging signing of) this agreement; and (l) contacting and liaising with third parties (including, without limitation, goods and services providers and insurers) and to provide those parties with the Principal's personal information.
- iv If the personal information outlined in this agreement or requested by the Agent is not provided by the Principal, the Agent may not be able to act on behalf of the Principal effectively or at all. The Agent may also not be able to discharge its obligations in this agreement. It is impracticable for the Agent to deal with a Principal who has not identified him, her or itself or used a pseudonym.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

The *Property and Stock Agents Act 2002* (NSW) (**Act**) and Regulation require all agents' instructions to be in the form of a written agreement.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT

- v Personal information collected about the Principal may be disclosed by the Agent for any of the purposes for which it was collected (as outlined above) to other parties including the Agent's or Principal's legal and other advisors, advertising and media organisations, property data service providers, prospective and actual tenants, clients of the Agent both existing and potential, tradespeople, strata owners corporations, valuers, government and statutory bodies, financial institutions, REINSW (which provides technical and other assistance to the Agent to effect the matters set out above) and other third parties (including, without limitation, goods and services providers and insurers) or government agencies, courts, regulatory bodies, and law enforcement agencies, or as required, authorised or permitted by any applicable law.
- vi The Agent may also use the Principal's information including personal information for marketing and research purposes to inform the Principal of products and services provided by the Agent, which the Agent considers may be of value or interest to the Principal, unless the Principal tells the Agent (by ticking the box below) or has previously told the Agent not to.
- vii If the Principal **does not** wish to receive any information about such products and services then please tick this box: ☐ or otherwise notify the Agent using the Agent's contact details set out earlier in this agreement.
- viii The Principal has the right to request access to any personal information held by the Agent which relates to the Principal, unless the Agent is permitted by law (including the Privacy Act) to withhold that information. The Principal also has the right to make a complaint about the way in which the Agent has handled the Principal's personal information or that the Agent may have breached this clause or the Privacy Act. The Principal also has the right to request the correction of any personal information which relates to the Principal that is inaccurate, incomplete or out-of-date.
- ix Any requests for access to the Principal's personal information or any complaints should be made in writing to the Agent at the contact details included in this agreement.
- x The Agent may charge a reasonable fee where access to personal information is provided (no fee may be charged for making an application to access personal information).
- xi The Agent will take reasonable precautions to protect the personal information it holds in relation to the Principal from misuse, loss, unauthorised access, modification or disclosure.
- xii The Agent may disclose the Principal's personal information outside of Australia. In doing so, the Agent will take reasonable steps that are reasonable in the circumstances to ensure that any overseas recipient will deal with such personal information in a way that is substantially similar to, or consistent with, the way in which the relevant Australian Privacy Principles in the Privacy Act protects such personal information.
- xiii By signing this agreement, the Principal: (a) acknowledges that it has read, understands and accepts the terms of this clause; and (b) provides express permission to the Agent to collect, hold, use and disclose personal information in the manner described in this clause.

Disclosure of Rebates, Discounts, Commissions or Benefits

27. In respect of any expenses to be incurred by the Principal or the Agent on behalf of the Principal pursuant to this agreement or if the Agent refers a person to a non-independent service provider, the Agent discloses that the Agent may receive, or expects to receive, rebates, discounts, commissions or benefits from third parties as specified below or as notified by the Agent to the Principal in writing from time to time after the date of this agreement:

Name of Third Party	Nature of relationship with Third Party	The nature and value of all rebates, discounts, commissions or benefits
		\$
		\$
		\$
		\$
		\$
		\$
		\$

If no rebate, discount, commission or benefit, write "nil".

Work, Health and Safety

28. i The Principal acknowledges that, at all material times:
- (a) the Principal has sole management and control of the Premises listed for lease, to the exclusion of the Agent;
 - (b) the Agent acts under the direction, management and control of the Principal to facilitate the lease of the Premises between the Principal and the tenant and in carrying out the Agent's management and other obligations under this agreement;
 - (c) the Principal is the person conducting a business or undertaking for the purposes of all work, health and safety laws, regulations and other requirements; and
 - (d) in any contracts associated with repairs and maintenance of the Premises, the Agent acts on the Principal's behalf and the Principal and contractor are the contracting parties.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

The Property and Stock Agents Act 2002 (NSW) (Act) and Regulation require all agents' instructions to be in the form of a written agreement.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT

- ii The Principal shall be responsible for ensuring that the structure of the Premises is safe and has been maintained to appropriate standards. This includes, but is not restricted to, ensuring the appropriate safety and control in accordance with all environmental and work, health and safety laws, regulations and other requirements, of:
 - (a) any asbestos contamination or hazardous material in the Premises or on the land;
 - (b) any building maintenance units, points of attachment and other fixtures for the purpose of external maintenance (e.g. window cleaning);
 - (c) electrical circuitry including electrical installations, light and power outlets;
 - (d) any fitted plant and substances including lead paint;
 - (e) any confined space including lifts and lift wells; and
 - (f) any walls, barricades, hoardings, stairs and railings that may pose a fall hazard.
- iii The Principal acknowledges, so far as reasonably practicable, that the Principal has thoroughly inspected the Premises prior to lease and that the Premises is:
 - (a) without risk to work, health and safety ☐ Yes ☐ No
 - OR
 - (b) subject to the risks and controls as advised by the Principal to the Agent in writing ☐ Yes ☐ No
- iv The Principal shall authorise the Agent to remedy on behalf of the Principal and at the Principal's cost any issue arising during the course of the lease which is considered an imminent threat to work, health and safety.

Landlord's Information Statement

29. The Principal acknowledges that it has read and understood the contents of an information statement in the approved form that sets out a landlord's rights and obligations under the *Residential Tenancies Act 2010* (NSW) and any other law in relation to a proposed residential tenancy.

Premises Fit for Habitation

30. The Principal warrants that the Premises are fit for habitation within the meaning of the *Residential Tenancies Act 2010* (NSW), there is no legal impediment to occupation of the Premises as a residence at the time of entering into this agreement and that the Principal will notify the Agent immediately if any legal impediment to the occupation of the Premises arises during the term of this agreement.

Compliance Warranty

31. Without limiting any other clause in this agreement, the Principal warrants that:

- i the Principal has complied with its obligations under all applicable codes and legislation; and
- ii the Premises complies with the requirements of all applicable codes and legislation, necessary for occupation of the Premises including, without limitation, with respect to smoke alarms, window safety devices, glass windows, staircases, doors and balustrades, asbestos, decks and balconies, lead paint, blind cord safety, hazardous activities and electrical, gas and plumbing installations.

Last Rent Increase

32. The Principal warrants that, at the time that the Principal signs this agreement (*tick the applicable box below*):

- ☐ the Premises **are not** being leased to a tenant; or
- ☐ the Premises **are** being leased to a tenant and the date of the last rent increase under the lease was / / (*if applicable, insert the date of the last rent increase*).

Tenancy Exclusion Period

- 33. i The Principal acknowledges that the Agent is prohibited under the *Residential Tenancies Act 2010* (NSW) from leasing the Premises in contravention of a Tenancy Exclusion Period.
- ii The Principal warrants that, at the time that the Principal signs this agreement:
 - (a) the Premises are not subject to a Tenancy Exclusion Period; ☐ Yes **OR** ☐ No
 - (b) the Premises are subject to a Tenancy Exclusion Period, but the Principal has received approval from the Secretary to enter into a residential tenancy agreement within that Tenancy Exclusion Period; ☐ Yes **OR** ☐ No
 - (c) the Premises are subject to a Tenancy Exclusion Period, and that period expires on / /
☐ Yes (*if yes, a date must be inserted*) **OR** ☐ No
- iii The Principal must, when signing this agreement:
 - (a) notify the Agent if a Tenancy Exclusion Period applies to the Premises at that time and, if so, the date on which that period will expire; and
 - (b) provide the Agent with a copy of any approval the Principal has received from the Secretary to enter into a residential tenancy agreement regarding the Premises within a current Tenancy Exclusion Period.

The Principal warrants that any information notified to the Agent under this clause is accurate.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

The Property and Stock Agents Act 2002 (NSW) (Act) and Regulation require all agents' instructions to be in the form of a written agreement.

iv In this clause:

- (a) "Tenancy Exclusion Period" has the same meaning as defined in the *Residential Tenancies Act 2010* (NSW). For clarity, a Tenancy Exclusion Period applies if:
- the Premises were formerly subject to a residential tenancy agreement and that former residential tenancy agreement was terminated on the ground:
 - of a proposed sale of the Premises;
 - of significant renovations or repairs to the Premises;
 - of demolition of the Premises;
 - that the Premises were no longer to be used as rented residential premises; or
 - that the Principal or their family would reside at the Premises; and
 - the prescribed period prohibiting the landlord from entering into a residential tenancy agreement for the Premises has not expired.
- (b) "Secretary" means the Commissioner for Fair Trading, Department of Customer Service, or as otherwise defined in the *Residential Tenancies Act 2010* (NSW).

Schemes and Accommodation

34. i The Principal warrants that, at the time that the Principal signs this agreement, the Premises are: *(tick the applicable box)*

(a) part of a NSW Government key worker housing scheme: ☐ No **OR** ☐ Yes

(b) part of an affordable housing scheme: ☐ No **OR** ☐ Yes

If yes, is the scheme operated for a limited period? ☐ No **OR** ☐ Yes

If the scheme is operated for a limited period, the scheme ends on: / /

(c) part of a transitional housing program: ☐ No **OR** ☐ Yes

If yes, is the program operated for a limited period? ☐ No **OR** ☐ Yes

If the program is operated for a limited period, the scheme ends on: / /

(d) purpose-built student accommodation? ☐ No **OR** ☐ Yes

If, after the Principal signs this agreement, the Premises become part of a scheme, program or accommodation listed in this clause, the Principal must notify the Agent immediately, in writing.

Disclaimer

35. The Principal acknowledges and agrees:

ii that:

(a) the Agent's role is to manage the tenancy;

(b) the Agent is not qualified to:

A. assess the structural aspects of the Premises including, without limitation, with respect to staircases, decking and balconies, glass windows, window safety devices, doors and balustrades, smoke alarms or heat alarms, asbestos, swimming pools and associated fittings, fences and safety barriers, electrical, gas and plumbing installations, lead paint and blind cord safety; and

B. ensure that the Premises complies and operates in accordance with the requirements of all applicable codes and legislation;

iii that inspections of the Premises conducted by the Agent do not include the moving of furniture, lifting of floor coverings, or inspecting the interiors of roof spaces, under flooring, inside of cupboards or the Principal's goods or other belongings; and

iv that the Agent has advised the Principal that the Principal should:

(a) have property inspections carried out by suitably qualified, licensed and insured contractors and experts in the appropriate areas; and

(b) hold adequate and appropriate insurances including, without limitation, building insurance, indemnity insurance and landlords insurance.

Smoke Alarms

36. Without limiting any other clause in this agreement, the Principal warrants that the Premises comply with the applicable provisions of the *Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021* (NSW).

Note: the Principal is subject to ongoing legal obligations with respect to smoke alarms in the Premises. The Principal should discuss any queries or concerns about these obligations with suitably qualified consultants.

Water Efficiency Measures

37. Do the premises contain the water efficiency measures prescribed by the *Residential Tenancies Act 2010* (NSW)? ☐ Yes ☐ No

Note: If the prescribed measures are not installed, the landlord may be prevented from recovering water usage charges from the tenant.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

The Property and Stock Agents Act 2002 (NSW) (Act) and Regulation require all agents' instructions to be in the form of a written agreement.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT

Conjunction

38. Unless otherwise instructed, the Agent is authorised to utilise the services of other licensed agents to act in conjunction with the Agent in order to perform the duties and services set out in this agreement but only one fee is payable. The Agent is liable to the Principal for the acts, defaults, and omissions of any other licensed agent whose services are utilised in accordance with this clause as if they were acts, defaults, or omissions of the Agent.

Warranty

39. The Principal warrants that all information provided by it to the Agent and in this agreement is true, correct and complete and that the Agent can rely on the information provided. The Principal agrees to keep the Agent updated, in writing, of any changes to such information to ensure that it remains up-to-date and accurate at all times.

Principal's Authority

40. The Principal warrants that the Principal has authority to enter into this agreement.

Service and Signing

41. The Principal acknowledges being served with a copy of this agreement.

42. If the Agent causes this agreement to be electronically served on and/or signed by the Principal by way of electronic communication (including the use of a third party platform to facilitate the service and signing of this agreement), the Principal agrees that the Principal's electronic signature and initials created for the purpose of signing this agreement will be the electronic representation of the Principal's signature and initials for all purposes when the Principal electronically signs this agreement, just the same as a pen-and-paper signature or initial.

Joint and Several

43. If a party consists of more than one person or legal entity, this agreement binds them jointly and each of them severally. Also, unless the context requires otherwise, a reference in this agreement to a party consisting of more than one person or legal entity includes a reference to any one or combination of them.

Annexure

44. In the interpretation and application of this agreement, a reference to an annexure is a reference to an annexure to this agreement and a reference to this agreement includes any such annexure.

Swimming Pool

45. Is there a swimming pool located on the Property? ☐ Yes ☐ No

Note: if the swimming pool is situated on land in a strata scheme or a community scheme (other than the Property), and that strata or community scheme comprises more than 2 lots, then you can answer 'no' to the above question.

If yes:

i has the swimming pool been registered on the NSW Swimming Pool Register? ☐ Yes ☐ No

ii in relation to the swimming pool, which of the following applies?

(a) there is a valid certificate of compliance which is less than 3 years old at the time the proposed lease will be entered into ☐ Yes ☐ No

(b) there is a valid occupation certificate which is less than 3 years old at the time the proposed lease will be entered into ☐ Yes ☐ No

If the answer is 'no' to both questions (ii)(a) and (ii)(b), the Principal agrees to promptly obtain and provide the Agent with a valid certificate of compliance or occupation certificate prior to the proposed lease being entered into.

Note: A swimming pool certificate of compliance or occupation certificate is valid for 3 years from its date of issue. The Principal must provide updated certificates to the Agent once they have expired.

Termination

46. Either party may terminate this agreement for default, with immediate effect, if the other party fails to:

i comply with an essential term of this agreement that is not capable of remedy; or

ii within 30 days of being provided with a notice of breach, remedy that breach of this agreement.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

The *Property and Stock Agents Act 2002* (NSW) (**Act**) and Regulation require all agents' instructions to be in the form of a written agreement.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT

PRINCIPAL

If Principal is an individual

I agree to be legally bound by the terms of this agreement even if I sign this agreement electronically.

Signature of Principal /
Authorised Representative

Date

Name of Signatory

Authority of Signatory *(delete whichever is not applicable)*

Power of Attorney / Authority Letter
(attach a copy)

Note 1: The "Authority of Signatory" box above only needs to be completed if the signatory is an Authorised Representative of the Principal signing this agreement on behalf of the Principal. If so, please attach either a copy of the power of attorney or authority letter.

Note 2: If there are more than two principals that are individuals, then an Additional Principal Annexure needs to be included in this agreement and completed.

If Principal is a corporation *(to be signed by 2 directors, or 1 director and 1 secretary, or sole director and sole secretary, or authorised officer or Attorney)*

I agree to be legally bound by the terms of this agreement even if I sign this agreement electronically.

EXECUTED for and on behalf of

ACN

pursuant to section 127 of the *Corporations Act 2001* (Cth):

Signature of Director / Secretary /
Authorised Representative

Date

Name of Signatory

Authority of Signatory *(delete whichever is not applicable)*

Director / Secretary / Authorised Officer /
Attorney *(attach a copy of Power of Attorney
if applicable)*

Note: If there is more than one principal that is a corporation, then an Additional Principal Annexure needs to be included in this agreement and completed.

AGENT

I agree to be legally bound by the terms of this agreement even if I sign this agreement electronically.

Signature of Agent /
Authorised Representative

Name of Signatory

Date

Note 1: This part of the agreement MUST NOT be signed by an assistant agent.

Note 2: If the Agent consists of more than one person or legal entity, then a Joint Agent Annexure needs to be included in this agreement and completed.

EXCLUSIVE MANAGEMENT AGENCY AGREEMENT (RESIDENTIAL)

The Property and Stock Agents Act 2002 (NSW) (Act) and Regulation require all agents' instructions to be in the form of a written agreement.

SCHEDULE

SCHEDULE

DISBURSEMENTS & PARTICULARS

Council Rates

Water / Sewerage Rates

INSURANCE

Company

Broker / Agent

Other Information

INSURANCE POLICIES

Name of Insurer

Building

Contents

Landlord's Protection

Other

Policy Number

Date Due

/ /

/ /

/ /

/ /

STRATA DETAILS

Strata Plan No.

Lot No.

Garage Lot No.

Strata Management Agent

Address

Postcode

Phone: Work

Mobile

Home

Email

STATEMENTS

Statement in name of

Forward to

Name

Address

Postcode

Copy to

Email

Name

Address

Postcode

Cheques payable to

OR Electronic Funds Transfer (EFT) to the following account/s

Bank Name	Account Name	BSB	Account No.	Payment Proportion (must add up to 100%)
		/		
		/		

PRINCIPAL'S REPRESENTATIVE

Name

Address

Postcode

Phone: Work

Home

Email

PRINCIPAL'S SOLICITOR

Name

Address

Postcode

Phone: Work

Home

Email

SPECIAL INSTRUCTIONS

Landlord Information Statement

What you must know before you rent out your residential property

Starting a tenancy

Before renting your residential property to a tenant, you (the landlord) or your agent will need to sign an acknowledgment on the residential tenancy agreement that you have read and understood this information (the **Landlord Information Statement**). Penalties apply if this is not met.

Your general responsibilities before renting out your property

Before renting out your property, you must make sure that the property is reasonably clean, is fit to live in and is in a reasonable state of repair. You must take all reasonable steps to ensure that:

- there is no legal barrier to occupy the property as a residence (e.g. environmental planning restrictions or no council approval to use the property as a residence)
- your property complies with health and safety laws (e.g. pool fencing, electrical installations, smoke alarms, window and balcony safety)
- the property is reasonably secure
- all light fittings are fitted with working globes.

The property must be fit to live in

To be fit to live in, your property must (at a minimum):

1. be structurally sound
2. have adequate natural or artificial lighting in each room, except storage rooms or garages
3. have adequate ventilation
4. be supplied with electricity or gas, and have enough electricity or gas sockets for lighting, heating and other appliances
5. have adequate plumbing and drainage
6. have a water connection that can supply hot and cold water for drinking, washing and cleaning
7. have bathroom facilities, including toilet and washing facilities, that allow users' privacy.

The property could have other issues that may make it unfit for a person to live in, even if it meets the above 7 minimum standards. Before you rent out your property, you should take steps (such as make repairs) to make sure it is fit to live in.

What you must tell your tenant before signing a tenancy agreement

Before signing a tenancy agreement, you or your agent must tell your potential tenant if the property is:

- planned to be sold
- subject to court proceedings where the mortgagee is trying to take possession of the property
- in a strata scheme and a strata renewal committee is currently established for the strata scheme.

You or your agent also **must not** induce a tenant to enter into an agreement by making false or misleading representations, or by knowingly hiding that the property:

- has been subject to flooding from a natural weather event or bushfire in the last 5 years
- has significant health or safety risks (unless obvious to a reasonable person when the property is inspected)
- has been the scene of a serious violent crime (e.g. murder or aggravated assault) in the last 5 years

- is listed on the loose-fill asbestos insulation register at nsw.gov.au/housing-and-construction/safety-home/loose-fill-asbestos-insulation/loose-fill-asbestos-insulation-register
- has been used to manufacture or cultivate a prohibited drug or prohibited plant in the last 2 years
- is part of a building where a fire safety order or a building product rectification order (or a notice of intention to issue one of these orders) has been issued regarding external combustible cladding
- is part of a building where a development application or complying development certificate application for rectification has been lodged regarding external combustible cladding
- is in a strata scheme where scheduled rectification work or major repairs will be carried out to common property during the fixed term of the agreement
- is affected by zoning or laws that will not allow a tenant to obtain a parking permit, and only paid parking is available in the area
- is provided with any council waste services that are different to other properties in the council area
- has a driveway or walkway that others can legally use.

Penalties apply if any of the above are not disclosed.

There must be a written tenancy agreement

You must use the standard form of residential tenancy agreement. Standard terms cannot be altered or deleted. Verbal agreements are still legally binding on you.

Additional terms are negotiable and may be added as long as they do not conflict with the *Residential Tenancies Act 2010* or Residential Tenancies Regulation 2019 and are not inconsistent with the standard terms of the agreement. Any term that limits or varies your obligations under the Act or Regulation is prohibited and void.

As part of any agreement you **must not**:

- require the tenant to have the carpet professionally cleaned or fumigated, or pay for such costs, when they vacate, unless required as a reasonable condition for a pet to be kept on the property
- require the tenant to take out insurance
- exempt yourself from liability for your or your representatives' acts or omissions
- require the tenant pay all or any part of the remaining rent, increased rent, a penalty or liquidated damages, if the tenant breaches the agreement
- provide that if the tenant does not breach the agreement, the rent may be reduced or that the tenant may be given another benefit
- require the tenant to use the services of a specified person or business to carry out any of the tenant's obligations under the agreement
- require the tenant to use a specific utility provider if there is no restriction that you use a specific utility provider.

Exceptions apply to agreements that are for 20 years or more.

In choosing a tenant, you must not discriminate

You have the right to choose the most suitable applicant for your property, but it is against the law to discriminate due to a person's race, age, disability, gender, sexual orientation, marital status or pregnancy. It is against Commonwealth and State anti-discrimination laws to do so.

What you must give to your tenant

Before a tenant signs an agreement or moves into the property, you or your agent must give the tenant the following:

- a copy of the proposed tenancy agreement, filled out in the spaces provided
- 2 hard copies, or 1 electronic copy, of the condition report completed by you or your agent
- a copy of the **Tenant Information Statement**
- a copy of the by-laws, if the property is in a strata scheme.

At the time the agreement is signed, you or your agent must:

- for any swimming or spa pools on the property, provide a copy of the valid certificate of compliance or occupation certificate issued in the last three years. This does not apply if your property is in a strata or community scheme that has more than 2 lots.

Before or at the start of the tenancy, you or your agent must:

- give a copy of the key (or other opening device or information) to open any lock or security device for the rented property or common property, at no cost to **each** tenant named in the agreement.

Penalties apply if these requirements are not met.

You must fill out a condition report and keep a copy

You or your agent must fill out a report about the condition of the property before signing a tenancy agreement. You must give the tenant 2 hard copies, or 1 electronic copy, of the condition report you or the agent completed.

The tenant must complete the report within 7 days after taking possession of the property and then give you or your agent a copy. You or your agent must keep a copy of the completed condition report.

Limits on what a tenant must pay at the start of the tenancy

There are limits on what you can ask your tenant to pay when renting out your property.

The only costs you can charge a tenant are:

- a holding fee (deposit) of no more than 1 weeks' rent
- up to 2 weeks' rent in advance
- up to 4 weeks' rent for the rental bond
- for agreements of 3 years or more – a fee for registering with NSW Land Registry.

You must not charge a tenant for any other costs, including:

- the cost of preparing the tenancy agreement
- giving them the keys or other opening devices.

How you can manage rental bonds

A rental bond must be in the form of money and not as a guarantee. Only one bond (maximum 4 weeks rent) can be taken for a tenancy agreement. You cannot take a bond before the tenancy agreement is signed.

If the tenant pays the bond directly to NSW Fair Trading using Rental Bonds Online (RBO) (visit nsw.gov.au/housing-and-construction/renting-a-place-to-live/residential-rental-bonds), you or your agent will receive confirmation of this.

You or your agent must also be registered with RBO and invite the tenant to lodge the bond using RBO before taking a rental bond from a tenant. Tenants can use RBO to securely pay the bond directly to NSW Fair Trading, which will hold the bond on trust for the duration of the tenancy.

If your tenant decides not to use RBO, the paper bond lodgement form can be used. You must deposit any bond your tenant pays you with NSW Fair Trading within 10 working days. If the bond is paid to your agent, your agent must deposit the bond with NSW Fair Trading within 10 working days after the end of the month in which the bond was paid. Penalties apply if a landlord or their agent does not lodge a bond paid with NSW Fair Trading.

You and your tenant can agree that the bond is to be paid in instalments after the tenancy agreement is signed.

If your property is a part of a strata scheme

If your property is in a strata scheme you must notify the owners' corporation in writing within 14 days after a new tenancy agreement starts. The notification must include the tenant's name and contact address (e.g. postal or email address) so they can be registered on the strata roll.

Communicating with your tenant

You must provide your name and a way for your tenant to contact you directly, even if you have an agent. If you do not have an agent you must **also** provide your residential or business address to receive mail. This information must be given to the tenant in writing before or when the tenant signs the tenancy agreement, or it can be included in the agreement.

You must let your tenant know, in writing, within 14 days of any changes to your or your agent's details.

Some formal communication between you and your tenant must be in writing to be valid, for example, termination notices and rent increase notices. You or your tenant can use email to serve notices or other documents but only if the other party has given specific permission that a nominated email address is to be used for this purpose.

During the tenancy

You must keep payment records

You or your agent must:

- give rent receipts to your tenant (unless rent is paid into a nominated bank account)
- keep a record of rent your tenant pays
- provide a copy of the rent record to your tenant within 7 days of their written request for it.

You must offer your tenant the following ways to pay rent

You or your agent must offer your tenant the following ways to pay rent:

- an approved electronic bank transfer (such as a funds transfer or BPAY)
- payment via Commonwealth Government's Centrepay (this requirement to start later in 2025)

You only need to register for a Centrepay account if your tenant has chosen to pay by this method.

You or your agent must not charge or pass on to the tenant any cost you incur for using one of the above ways to pay rent.

Tenants may still be offered other ways to pay rent. Tenants cannot be required to pay rent using other payment method or to use a particular service provider for payment, such as an app.

Penalties apply if these obligations are not met.

When you can increase the rent during the tenancy

Rent cannot be increased in the first 12 months of a tenancy. After the first year, you can only increase the rent once in every 12 month period for both fixed term and periodic agreements.

This 12 month period continues into subsequent agreements as long as:

- the subsequent agreement is a renewal or replacement of the first agreement
- the landlord and at least one tenant remains the same in both agreements
- the tenant occupies the property immediately before and after the renewal or replacement.

You must give your tenant at least 60 days written notice before you can increase the rent.

Who pays for rates, taxes and certain utility charges?

You are always responsible for the payment of all rates, taxes or other charges payable under any law. There are also other charges you must pay as set out in the tenancy agreement.

Your tenant will generally pay for electricity and gas charges but only if the property is separately metered.

Limits on when a tenant must pay for water usage

Water is different to other utilities as it is always connected, and the account for the water supply will be in your name. You are always responsible to pay all water supply service charges (other than water usage charges if the property is separately metered) and all sewerage supply services.

You can only pass on water usage charges to the tenant if the property is separately metered and meets the following water efficiency measures:

- all showerheads have a maximum flow rate of 9 litres per minute
- all internal cold-water taps and single mixer taps for kitchen sinks or bathroom hand basins have a maximum flow rate of 9 litres per minute

- any leaking taps or toilets on the property are fixed at the start of the agreement and whenever other water efficiency measures are installed, repaired or upgraded
- toilets are dual flush and have a minimum 3-star WELS rating.

Additionally, the water usage charges must not be more than the amount you have been billed for. You must request payment within 3 months of the bill being issued and you must give the tenant at least 21 days to pay.

If tank water is the only form of water supply to the property (i.e. water is delivered by vehicle), then you should ensure there is water in the tank at the start of the tenancy. Your tenant will be responsible for refilling the tank as needed during the tenancy, if the property meets the water efficiency measures.

You must repair and maintain your property

A rental property must always be fit to live in. You are responsible for any repairs or maintenance, so the property is in a reasonable state of repair considering its age and prospective life, and the amount of rent the tenant is paying.

Your tenant should tell you or your agent when the property needs repairs. You are responsible for arranging and paying for the repair costs unless the tenant caused or permitted damage.

If the repair is an **urgent repair** e.g. where there is a burst water service, blocked or broken toilet, a gas leak or dangerous electrical fault, you should make these repairs as soon as reasonably possible. A list of **urgent repairs** is available at nsw.gov.au/housing-and-construction/rules/urgent-repairs-residential-rental-properties.

If you are uncontactable or do not complete urgent repairs in a reasonable time, your tenant can have a qualified person carry them out without your consent. You must then pay your tenant back (maximum of \$1,000) for the repair costs within 14 days from their written request for payment

Your tenant can apply to NSW Fair Trading for a rectification order if you refuse or fail to provide and maintain the property in a reasonable state of repair. Similarly, you can apply to NSW Fair Trading for a rectification order if your tenant refuses or fails to repair damage they have caused or allowed. The NSW Civil and Administrative Tribunal (the Tribunal) can make orders that may include compensation if rectification orders are not followed.

You must ensure smoke alarms are working

Smoke alarms must be installed on all levels of your rental property in accordance with environmental and planning laws. You must maintain them to ensure they are working.

You must repair or replace a smoke alarm within 2 business days from when you find out it is not working (this includes replacing a battery). Your tenant should tell you if any of the smoke alarms are not working.

You must get a licensed electrician to repair or replace hardwired smoke alarms in your property, except where the back-up battery needs to be replaced.

If the repair involves replacing a removable battery in a battery-operated smoke alarm or a removable back-up battery in a hardwired smoke alarm, your tenant can choose to change it. They must notify you if and when they do this.

You must also check the smoke alarms annually to ensure they are working. If a smoke alarm has a removable battery, you must put a new battery in annually or within the time set out in the smoke alarm manufacturer's instructions. The whole smoke alarm must be replaced within 10 years from the date of manufacture or earlier if specified by the smoke alarm manufacturer.

Penalties apply if these obligations are not met.

How you can access the property during the tenancy

Your tenant has the right to reasonable peace, comfort and privacy when renting. For this reason, the tenancy laws restrict when and how often you, your agent or other authorised person can enter the property.

You, your agent or other authorised person can only enter the rented property without the tenant's consent in certain circumstances, and if proper notice (if applicable) has been given. For example:

- in an **emergency**, no notice is necessary
- if the **Tribunal orders** that access is allowed
- to carry out, or assess the need for, **necessary repairs or maintenance** of the property, if you have given at least 2 days' notice

- to carry out **urgent repairs**, no notice is necessary
- to carry out **repairs or replacement of a smoke alarm**, if you have given at least 1 hour's notice
- to **inspect or assess the need for repair or replacement of a smoke alarm**, if you have given at least 2 business days' notice
- to carry out a **general inspection** of the property if you have given at least 7 days' written notice (no more than 4 inspections during a 12-month period).

Limits also apply on entry without consent. You, your agent or authorised person:

- can only access the property after proper notice has been given between 8am and 8pm on any day except Sundays or public holidays
- must, if practical, notify the tenant of the approximate day and time when entry will be required
- must not stay on the property longer than is necessary.

The above limits do not apply in an emergency, for urgent repairs, if the property is abandoned, if the Tribunal orders otherwise or if the tenant agrees.

Tenant's request to keep a pet on the property

Your tenant can request to keep a pet on the property through the pet application form. You or your agent must respond to the application within 21 days or the pet is automatically approved. You can only refuse the request to keep a pet on the property if:

- there would be more than four animals, and the number of animals is unreasonable
- the property is not suitable for the animal due to fencing, lack of open space or because it will harm the animal's welfare
- the animal is very likely to cause more damage than the bond could repair,
- the landlord lives at the property
- keeping the animal would break other laws, local council rules, strata or community scheme by-laws, or a residential community rule
- the tenant did not agree to a reasonable condition for keeping the animal.

There are limitations on the kinds of conditions you may require from a tenant. For example, you cannot ask a tenant to increase the bond or rent as a condition for keeping the animal on the property.

If a tenant disagrees with your decision or believes you have asked for an unreasonable condition to keep a pet, they can apply to the Tribunal to challenge this.

Tenant's request to make minor changes to the property

Your tenant can request to make minor changes to the rental property but will need to obtain your written consent before they do this. You can only refuse your tenant's request to make a minor change if it is reasonable to do so e.g. any request that would involve structural changes or is inconsistent with the nature of the property.

There are certain types of 'minor' changes where it would be unreasonable for you to refuse consent, and which of those changes you can require be carried out by a qualified person. For example, it would be unreasonable for you to refuse consent to the following minor changes:

- installing hooks for hanging things such as pictures
- securing furniture to the wall (other than a tiled wall) for safety reasons.

The tenant is responsible for paying for the changes and will be responsible for any damage they cause to the property. Certain rules apply on removing any modifications at the end of the tenancy.

Tenants' rights in circumstances of domestic violence

If a person is experiencing domestic violence in a rental property, there are options available to them if they need to escape violence or make them safer or if they wish to stay in the property.

For example, your tenant can end their tenancy immediately, without penalty, if they or their dependent child are in circumstances of domestic violence.

If someone in your rental property is experiencing domestic violence and they want to stay in the property they can:

- apply to the Tribunal to be listed as the tenant (if they are an occupant), or to remove the perpetrator from the tenancy agreement (if they are another co-tenant)
- change the locks to increase their safety.

In addition, a tenant or any innocent co-tenant is not liable for property damage caused by the perpetrator of violence during a domestic violence offence.

Ending the tenancy

A tenancy agreement is a legally binding agreement that can only be ended in certain ways. A tenancy will usually be terminated by you or your tenant giving notice to the other party, with the tenant vacating on or by the date specified in the notice.

To end a tenancy, you or your agent need to give the tenant a written termination notice with the applicable notice period. In some cases, you can apply directly to the Tribunal for a termination order without issuing a termination notice (e.g. where the tenant is using the property illegally by manufacturing drugs).

Termination notice

The termination notice must be in writing and signed and dated by you or your agent. It must include:

- the address of the rented property
- the date the tenant is to move out
- the reason for termination
- supporting documents or information (if applicable).

You must also provide your tenant with a Termination Information Statement with the termination notice. There is a **Termination Information Statement** available from NSW Fair Trading that you can use.

Penalties may apply if you or your agent provide a termination notice for a reason that is not genuine or provide supporting documents or information that are false or misleading.

Please visit www.nsw.gov.au/housing-and-construction/rules/landlord-ending-a-tenancy for the list of reasons you can use to end a tenancy agreement, and whether these reasons require supporting documents or information.

Ending a tenancy in circumstances of domestic violence

A tenant can end their tenancy immediately and without penalty if they or their dependent child are in circumstances of domestic violence. They can do this by issuing a domestic violence termination notice with the relevant evidence. There is no minimum notice period. Tenants who end their tenancy by issuing a domestic violence termination notice cannot be listed on a tenant database.

The tenant or any innocent co-tenant will also not be liable for property damage caused by the perpetrator of violence during a domestic violence offence.

More information about ending a tenancy due to domestic violence is available at nsw.gov.au/renting-domestic-violence.

Break fee for ending a fixed term agreement early

For a fixed term agreement of 3 years or less, where the tenant ends the agreement early, mandatory break fees may apply based on the stage of the agreement. If it applies, the set fee payable will be:

- 4 weeks rent if less than 25% of the lease had expired
- 3 weeks rent if 25% or more but less than 50% of the lease had expired
- 2 weeks rent if 50% or more but less than 75% of the lease had expired
- 1 week's rent if 75% or more of the lease had expired.

The break fee does not apply if the tenant ends the agreement early for certain reasons allowed under the Act.

Refunding the rental bond

The bond should be refunded in full at the end of the tenancy unless there is a reason to make a claim against the bond. The main reasons for claiming against a bond include if:

- rent or other charges (e.g. unpaid water usage bills, break fee) are owing
- copies of the keys were not given back and the locks needed to be changed
- the tenant caused damage or did not leave the property in a reasonably clean condition compared to the original condition report, apart from 'fair wear and tear'.

The tenant is not liable for fair wear and tear to the property. This is the deterioration that occurs over time with the use of the property even when the property receives reasonable care and maintenance. They are only liable for negligent, irresponsible or intentional actions that cause damage to the property.

A tenant in circumstances of domestic violence, or any innocent co-tenant, will not be liable for property damage caused by the perpetrator of violence during a domestic violence offence.

If the tenant does not move out

If the tenant does not leave by the date specified in the termination notice, you or your agent will need to apply to the Tribunal for termination and possession orders. If the Tribunal order has not been complied with, only a Sheriff's Officer can legally remove your tenant from the property under a warrant for possession.

You cannot lock your tenant out of the property under any circumstances unless a Sheriff's Officer is enforcing a warrant for possession issued by the Tribunal or a court. Heavy penalties apply if this is not complied with.

More information about your responsibilities

Visit nsw.gov.au/renting or call 13 32 20 for more information about your responsibilities as a landlord.

Contact us

T: 13 32 20

W: nsw.gov.au/fair-trading

For language assistance, call 13 14 50 (*ask for an interpreter in your language*)